

SERVICE ENGAGEMENT AGREEMENT

Agreement No:

This **Service Engagement Agreement** (this “Agreement”) is made and executed into this 15th (Fifteen) day of January, 2026 (Twenty Twenty-Six) (“Effective Date”) at Maradu by and between

Ecogo Software Solutions Pvt. Ltd., a company duly incorporated and registered under the provisions of the Indian Companies Act, 2013, (CIN U62013KA2024PTC187414) with its registered address at 409, Fourth Floor, VII/96/71, HiLITE Platino Business Park, Shankar Nagar Colony, Maradu, Ernakulam, Kerala – 682304, India, represented by Muhammed Arshad M, (Director), hereinafter referred to as the “Company”/ “First Party” (which expression shall, unless it be repugnant to the context or meaning thereof, be deemed to mean and include its successors and permitted assigns);

AND

Nesna Joy, (Aadhaar No. _____) D/o _____, aged _____, Having permanent address at _____. (Hereinafter referred to as “Second Party”/ “Service Provider”)

Both the parties collectively hereinafter referred to as (“**Parties**”).

Whereas:

- A. The First Party is a leading IT Company providing IT service under the brand name Ecogo Software Solutions Pvt. Ltd.
- B. The First Party is desirous of engaging the Second Party as a Software Quality Analyst, and the Second Party has agreed to provide the service in the capacity as a Service Provider.
- C. The Parties now wish to incorporate the terms and conditions of the aforesaid service engagement in writing.

NOW THEREFORE, in consideration of the above recitals, which are incorporated into this Agreement, and in consideration of the mutual promises made by the parties herein, the parties acknowledge the receipt and sufficiency of these promises and agree to the following terms and conditions:

1. Definitions

1.1. **“Confidential Information”** shall mean such technical and non-technical business information, software-related information, quality assurance processes, testing methodologies, project documentation, client data, defect reports, system specifications, and other proprietary information related to the Ecogo Software Solutions Pvt. Ltd. business and not commonly known by or available to the general public, including without limitation any trade secrets revealed pursuant to the signing of this Agreement, which the parties agree to maintain in confidence, to disclose them only to persons within their respective organizations having a need to know, and to furnish assurances to the other party that such persons understand their duty of confidentiality.

1.2. **“Intellectual Property”** means collectively or individually the following worldwide rights relating to intangible property, whether or not filed, perfected, registered, or recorded, and whether now or hereafter existing, filed, issued, or acquired: (a) patents, patent applications, patent disclosures, patent rights, (b) rights associated with works of authorship, including without limitation, copyrights, copyright applications, copyright registrations; (c) rights in trademarks, trademark registrations, and applications thereof, trade names, service marks, service names, logos, or trade dress; (d) rights relating to the protection of trade secrets and confidential information; (e) internet domain names, Internet and World Wide Web (WWW) URLs or addresses; (f) all other intellectual, information or proprietary rights anywhere in the world including rights of privacy and publicity, rights to publish information and content in any media.

1.3. **“Service fee”** is a payment or compensation that the Service Provider is entitled to receive for providing Software Quality Analyst services, including software testing, validation, quality assurance activities, defect tracking, documentation, and related services, as outlined in this Service Engagement Agreement.

2. Service Engagement

2.1. The Second Party agrees, accepts and declares that she shall act as an independent service provider and agrees to provide or perform all the sufficient, adequate, necessary, and required services as per the management herein during the period of engagement. This

Agreement herein shall be treated as the master service engagement agreement and any previously executed agreement between both Parties shall be void after the execution of this Agreement.

2.2. The Second Party shall serve the Company as the Software Quality Analyst.

2.3. The Agreement shall be effective from 27 January 2026 and shall continue until 19 April 2026, unless terminated earlier in accordance with the terms of this Agreement. Both Parties may mutually agree in writing to extend or renew this Agreement.

2.4. The First Party agrees and confirms to pay the Second Party a monthly Service Fee, up to a maximum of INR 47,916/- (Indian Rupees Forty-Seven Thousand Nine Hundred and Sixteen only), as consideration for the services rendered under this Agreement, subject to the terms and conditions herein. The Service Fee shall be calculated based on the actual total working hours performed by the Second Party during the relevant month, applying a per day rate of INR 2,178/- and a per hour rate of INR 272.25/- for the limited purposes of calculation, adjustment, and pro-rata determination. The aforesaid rates are provided solely for reference and administrative purposes and shall not be construed as creating a daily, hourly, or employment-based remuneration arrangement. The Service Fee payable for any month shall vary in accordance with the total working hours rendered and shall not exceed the aforesaid maximum monthly amount.

2.5. The Second Party agrees and confirms that she shall engage in providing services during the following working time: Monday to Friday - 2 (Two) hours per day and Saturday - 8 (Eight) hours

2.6. No modification of this Agreement shall be valid unless made in writing and mutually agreed upon by the Parties.

2.7. The Second Party shall provide thirty (30) days' written notice via email to the First Party prior to terminating this Agreement.

3. Transition to Permanent Employment Clause

3.1 The Second Party is engaged on a consultancy basis under this Agreement for the engagement period commencing from 27 January 2026 and ending on 19 April 2026. During this period, the Second Party shall be compensated as per the agreed terms and shall not be considered an employee of the Company.

3.2 The First Party reserves the right, at its sole discretion, to evaluate the performance and suitability of the Second Party during the consultancy term. Should the Company determine, at any point during the term of this Agreement, that the Second Party is a suitable candidate for permanent employment, the Company may, at its discretion, offer a transition to permanent employment status.

3.3 If the Company decides to transition the Second Party to permanent employment, the Second Party shall be notified in writing at least one (1) week prior to the effective date of such transition. Upon transition, the Second Party shall be added to the Company payroll and shall be governed by the terms and conditions of the Company's standard employment agreement.

3.4 Upon transition to permanent employment, the Second Party shall become eligible for the Company's standard benefits package, if any, and all compensation, statutory deductions, and benefits shall be administered in accordance with the Company's payroll policies and applicable laws.

4. Leave Policy

4.1. The Second Party shall not be entitled to any paid leave during the term of this Agreement.

4.2. Leave may be granted only in emergency situations, subject to prior approval from the management of the First Party, and any such leave taken shall be treated as Loss of Pay (LOP).

4.3. Any leave taken without prior approval or beyond emergency circumstances shall be considered unauthorized leave and shall be treated as Loss of Pay (LOP), without prejudice to the First Party's right to take further action in accordance with this Agreement.

5. Termination of Service

5.1. This Agreement shall automatically terminate on the date on which the service engagement expires or terminates, as the case may be, unless terminated earlier in accordance with the provisions of this Agreement.

5.2. The Company may terminate the engagement of the Second Party without notice upon the occurrence of any of the following events:

- 5.2.1. If the Second Party fails to perform the services in accordance with the requirements or expectations of the engagement or is incapable of protecting the Company's policies and interests during the term of this Agreement, the First Party shall issue a written memo to the Second Party requiring correction of errors or improvement in performance within a stipulated time. If, despite the issuance of two (2) such memos, the Second Party fails to correct or maintain the required performance standards, the First Party shall be entitled to terminate this Agreement.
- 5.2.2. In the event the Second Party is found to be guilty of fraud, dishonesty, disobedience, disorderly behaviour, negligence, indiscipline, absence from duty without permission, breach of confidentiality, or any other conduct considered by the Company to be detrimental to its interests or in violation of one or more terms of this Agreement, the services of the Second Party may be terminated without notice.

6. Confidentiality and Data Protection

- 6.1. During the term of this engagement or after the termination of this Agreement, the Second Party shall not disclose, reveal, or communicate any information which could be considered detrimental to the interests of the Company, its clients, partners, employees, or agents, nor take or retain any copies of documents, data, or materials whatsoever connected to the business of the Company, without the prior written consent of the management.
- 6.2. The Second Party shall not have any right to disclose, publish, or reveal any sensitive or confidential details of the Company or its clients to any third party or post the same on any social media networking platform, including but not limited to print media, digital media, radio, or online publications, during or after the termination of the service engagement, without the prior written consent of the First Party. Any such disclosure shall constitute a data protection violation, and in the event of such disclosure, the Second Party shall be solely responsible for all legal proceedings, claims, damages, or liabilities arising therefrom, and the First Party shall have no obligation or legal responsibility in this regard.

6.3. The Second Party shall not directly or indirectly divulge or disclose any financial, commercial, technical, or operational information relating to the services, projects, or business of the Company or any of its affiliates or clients to any third party whatsoever.

6.4. The Second Party shall not store, copy, or retain any database, source files, test data, reports, or confidential materials of the First Party on any personal devices. The Second Party shall also not be permitted to remove or take any Company property, whether physical or digital, outside the Company's premises or authorized systems without prior written approval.

7. Intellectual Property Rights

The Second Party agrees and confirms that all intellectual property rights in any work, deliverables, materials, documentation, reports, test cases, test scripts, software-related outputs, or other work products resulting from the service engagement, including but not limited to copyrights, trademarks, and all other proprietary rights, shall vest solely and exclusively with the First Party.

The Second Party further agrees and confirms that she shall not claim any ownership, title, or interest in such work products or intellectual property at any time, whether prior to or after the delivery or completion of such work.

8. Non-Solicitation Clause

The Second Party agrees and confirms that she shall not, directly or indirectly, solicit or attempt to solicit any business from any of the First Party's employees, service providers, customers, clients, or contractors, either during the term of this Agreement or within two (2) years from the date of termination or expiration of this Agreement.

9. Tax

9.1. The First Party agrees to deduct **TDS (Tax Deducted at Source)** as per applicable laws under the Income Tax Act, 1961, before making any payments to the Second Party.

9.2. The Second Party shall be solely responsible for filing her income tax returns and ensuring compliance with applicable tax laws.

9.3. Any changes in tax laws affecting this agreement shall be automatically applicable and binding on both Parties, provided that written intimation is shared between the Parties.

10. Indemnification

The Company agrees to indemnify, defend, and hold harmless the Second Party from and against all claims, lawsuits, losses, damages, liabilities, and costs of every kind, including reasonable legal fees, arising out of or pertaining to the Company's business, to the extent such claims result directly from any act or failure to act by the Company in connection with the services rendered under this Agreement.

11. Independent Contractor

The Second Party's relationship with the First Party shall be that of an independent contractor and not that of an employee, agent, partner, or joint venture of the Company. Nothing contained in this Agreement shall be deemed or construed to create an employer-employee relationship, partnership, or agency between the Parties. The Second Party shall not be entitled to any employee benefits, statutory or otherwise, provided by the First Party.

12. Breach of Contract

If either Party breaches any provision of this Agreement, which causes damage or loss to the other Party, the aggrieved Party may notify the defaulting Party in writing and require such Party to rectify and correct the breach or perform the specific act as agreed under this Agreement. If the defaulting Party fails to take satisfactory action to rectify or cure such breach within fifteen (15) days from the date of receipt of the written notice, the aggrieved Party shall be entitled to take appropriate action in accordance with this Agreement and pursue any other remedies available under applicable laws.

13. Effective date

This Agreement shall be effective from the date of signing of this Agreement by both Parties and shall remain valid for the period specified herein, unless terminated earlier in accordance with the terms of this Agreement.

14. Survival clause

Clauses relating to Termination of Service, Confidentiality and Data Protection, Intellectual Property Rights, Non-Solicitation, Indemnification, Independent Contractor, and Breach of Contract shall survive the expiration or termination of this Agreement and shall continue to remain in full force and effect until fulfilled.

15. Entire Agreement

This Agreement constitutes the **entire understanding** between the Parties with respect to the subject matter hereof and supersedes all prior discussions, representations, negotiations, or agreements, whether written or oral. Any modification or amendment to this Agreement shall be valid only if made in writing and signed by both Parties.

16. Notices.

Any notice required to be given under this Agreement shall be in writing and shall be deemed to have been duly given if sent by email, registered post, or hand delivery to the address of the respective Party as mentioned in this Agreement, or to such other address as may be notified in writing by either Party. Notices sent by email shall be deemed received on the next working day.

If to the First Party:

Address: 409, 4th Floor, Hilite Platino Business Park, Shankar Nagar, Maradu, Kochi,
Ernakulam, Kerala 682304

Email: _____

Mobile: _____

If to the Second Party:

Permanent Address: _____

Email: _____

Mobile: _____

17. Governing Law

This Agreement shall be governed by, construed, and regulated in accordance with the laws prevailing in India. The courts of Ernakulam, Kerala, shall have exclusive jurisdiction in respect of any disputes arising out of or in connection with this Agreement.

18. Miscellaneous

18.1. **Force Majeure:** Neither Party shall be liable for any delay or failure in the performance of its obligations under this Agreement if such delay or failure is caused by events beyond its reasonable control, including but not limited to acts of God, natural disasters, strikes, lockouts, war, terrorism, epidemics, pandemics, or governmental actions, provided that the affected Party gives prompt written notice of the occurrence of such force majeure event to the other Party.

18.2. **Non-Assignment:** The Second Party shall not assign, transfer, or delegate any of her rights or obligations under this Agreement, in whole or in part, without the prior written consent of the First Party.

18.3. **Dispute Resolution:** Any dispute, difference, or claim arising out of or in connection with this Agreement shall first be resolved amicably through mutual discussions between the Parties. If such dispute is not resolved within thirty (30) days, the same shall be referred to and finally resolved by arbitration in accordance with the provisions of the Arbitration and Conciliation Act, 1996, and the arbitration shall be conducted at Ernakulam, Kerala, and in the English language.

19. Copies of the Agreement

This Agreement shall be executed in two (2) counterparts, each of which shall be deemed an original, and each Party shall retain one (1) copy of this Agreement.

20. Self-Declaration

I, _____ aged __, D/o _____ residing in _____, hereby declare, confirm and accept the following:

- a. I read each and every term and conditions incorporated in this agreement herein and accept the same with my own free will and my professional capacity.
- b. All the information and documents submitted as a part of this service engagement are correct, true and best of my knowledge.

Deponent

Dated this __th day of _____, 2026.

In **Witness Whereof**, the Parties have executed this agreement, as of the day and year first written above.

Signature and Seal of the First party

Name, Signature of the
Second Party

Witness:

- 1.
- 2.